

## 5.1

### **Relative importance of various forms of publication**

Many first perceive literature to be defined as creative works like fiction or or collections of poetry. In scholarly and professional terms, literature is also defined as works available or published about a particular concept.

|                             | Definition                                                          | Attributes                                                                    | Types of Publications                                                                                                                                                                                                                                                                                                                                                                                                         |
|-----------------------------|---------------------------------------------------------------------|-------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Primary Literature</b>   | Direct documentation or interaction with an event or occurrence.    | Results of original research;<br><br>Peer reviewed                            | <ul style="list-style-type: none"> <li>• Peer-reviewed journal articles</li> <li>• Published experimental, quasi-experimental, mixed method, or qualitative research</li> <li>• Theses &amp; dissertations</li> <li>• Laws &amp; legislation</li> <li>• Conference reports or proceedings</li> <li>• Interviews &amp; transcripts</li> <li>• Raw data (directly collected and gleaned from an experiment or study)</li> </ul> |
| <b>Secondary Literature</b> | Based on an indirect interaction with an event or information.      | Summarizes, uses, discusses, or comments on information from primary sources. | <ul style="list-style-type: none"> <li>• Textbooks</li> <li>• Trade journals</li> <li>• Books (not the result of original research)</li> <li>• Reviews: systematic, literature</li> <li>• Meta-analyses</li> <li>• Opinion pieces</li> <li>• Secondary data</li> </ul>                                                                                                                                                        |
| <b>Tertiary Literature</b>  | Also based on an indirect interaction with an event or information. | Utilizes and distills information from both primary and secondary sources.    | <ul style="list-style-type: none"> <li>• Handbooks</li> <li>• Manuals</li> <li>• Dictionaries</li> <li>• Encyclopedias</li> <li>• Indexes and abstracts</li> </ul>                                                                                                                                                                                                                                                            |

## **Common Scientific Publications**

### **Review**

A detailed study and overview of developments within a specific topic

### **Book**

An authoritative work on a topic within a field, often presents basic information and theories which are the results of previous research

### **Government Document**

A publication or report of a government agency of any level. These publications may include research, committee, or agency reports, regulations, laws and statutes and data.

### **Conference Paper or Proceeding**

A paper presented at a conference, meeting or symposium of a professional, scholarly organization. Many researchers use conferences to solicit feedback on their work from others within their field and then use the feedback for updates, refinements or considerations for their research topic.

### **Trade Journal or Article**

Practical information, news, or summaries of developments within a field.

### **Pre-Print**

An article that has undergone the peer review process and been accepted to a journal but not yet published

### **Original Article**

Provides new information based on original research and presents a research topic, its background, methodology used, results, conclusion and discussion of results.

### **Dissertation**

A document on a scholarly or research topic done by a student to fulfil the requirements of attaining an advanced degree.

### **Case Report**

A description of a single case or situation with unique features

### **Reference Works**

A reference work is a collection of general facts within a field. These can be used to find standards, measurements, or the general background of a theory. Many types of reference works exist, but these are ones more commonly used in the sciences.

- **Handbook:** a resource that summarizes major topics or processes within a field. These often provide tables with equations, functions, algorithms, and other

established measurements or methods. See Knovel Critical Tables (FAU log-in required).

- **Standard:** a document with agreed-upon technical specifications or other criteria with the intention of being used as rules, guidelines, or definitions of characteristics to ensure that materials, products, processes, or services are fit for their purpose (International Organization for Standardization, n.d.). A standard is established by a professional organization to provide a baseline of acceptable quality. See Engineers Edge list and description of standards from ANSI, ASTM, and others.
- **Encyclopedia:** a collection of summaries on selected key concepts within a field. Scholars often use one as an initial resource to learn about an unfamiliar topic.

## Technical Notes and Patents

Certain scientific fields communicate their findings using other types of publications:

1. **Technical note:** a description of new technology and recent innovations.
2. **Technical report:** an account of work done on a research project; often used for internal documentation within a company or institution.
3. **Patent:** a public notice of an invention filed with a governmental patent agency. A patent gives the inventor exclusive rights to his or her creation for a certain amount of time. A patent document often provides technical information on a given work or form of technology. It does not undergo the peer review process, but rather is a legal document.

## Grey Literature

Gray (or grey) literature generally consists of publications that are not distributed through scholarly or commercial channels such as professional journals. Types of gray literature may include:

- Trade reports
- Government publications
- Conference proceedings
- Company research or "white papers"

Some definitions of gray literature include publications such as blogs, statistical reports, and working papers.

The purpose of gray literature varies and depends on the setting in which it is published and distributed. In corporations or organizations, gray literature may be used to distribute new information, communicate for internal purposes, or to document activities.

## **Choice of journal and reviewing process**

### **➤ How to Choose a Journal for Your Paper**

First of all, list the available journals within your research field. This will give you an idea of the range of suitable options and, with further examination, learn more details concerning the adequacy of your paper to its scope and the fulfillment of your expectations regarding the journal's profile (e.g. audience and/or rank). Pay special attention to:

- **The topics published by the journals.**

Is your research in the clinical field? Then, you should select a clinical journal. Is your research, on the other hand, applied? If so, choose a journal accordingly.

- **The audience.**

You can choose from more generalized topic journals if your aim is to reach scientists in related areas or if otherwise, pick a specialized one.

- **The types of articles the journal publishes.**

Make sure your target journal accepts the kind of article you want to publish – theorems, case studies, and reviews, are some of the most common types.

- **The journal's reputation.**

The Impact Factor is an important measurement but also remember to consider the prestige of the authors publishing in it and see if your research is at a similar level.

### **➤ Points to be noted while Journal Selection**

#### **Make a List of the Journals Available**

It is essential to obtain reasonably comprehensive knowledge about available journals in the given subject area. Consulting your peers, searching through online listings, and checking with professional associations can help us get a list of the journals.

#### **Determine the Impact of the Journal**

Quantitative measures such as the Impact Factor, Journal Rank, Article Influence, and h-Index are used to determine the impact of the journal. These are generally linked to the citation rate for articles published in the journal; however, these values and the absolute numbers of citations can both be scrutinized.

#### **Make Sure the Journal Scope and Policies match your Needs**

The subject areas covered and the types of articles published should be ascertained. This will contribute towards addressing the suitable target audience. Further, you should go through the

editorial policies and practices of the journal. This would help to anticipate any situations that may emerge during the submission and peer review process.

### **Check the Journal Requirements and Distribution**

Most journals have a certain style for the article. The article must be consistent with the requirements of the journal. The mode of distribution (print/online) and number of subscribers determine the reach of the journal. For open access, where the content is available to all, having an estimate of the typical number of readers helps. This would mean that your article would reach that many number of people.

### **Collect Information about the Journal's Peer Review Process**

Information about the peer review process for the specific journal, including stature of reviewers, objectivity, and timelines, should also be gleaned from a variety of sources. Actual values or estimates of rejection rates should be obtained.

### **Check the “Instructions for Authors” thoroughly**

The “Instruction for Authors” has certain additional information for the authors that one must keep in mind before submitting the manuscript. For example, topics that are welcome, discouraged, page limit etc. may be mentioned here, that are important for the authors. Therefore, this list must be thoroughly checked.

## **➤ What is peer review?**

Peer review is designed to assess the validity, quality and often the originality of articles for publication. Its ultimate purpose is to maintain the integrity of science by filtering out invalid or poor quality articles.

From a publisher's perspective, peer review functions as a filter for content, directing better quality articles to better quality journals and so creating journal brands.

Running articles through the process of peer review adds value to them. For this reason publishers need to make sure that peer review is robust.

## **The peer review process and stages in the realization of a paper**

The peer review process can be broadly summarized into 10 steps, although these steps can vary slightly between journals. Explore what's involved, below.

# Peer Review Process



## 1. Submission of Paper

The corresponding or submitting author submits the paper to the journal. This is usually via an online system such as Scholar-One Manuscripts. Occasionally, journals may accept submissions by email.

## 2. Editorial Office Assessment

The journal checks the paper's composition and arrangement against the journal's Author Guidelines to make sure it includes the required sections and stylizations. The quality of the paper is not assessed at this point.

## 3. Appraisal by the Editor-in-Chief (EIC)

The EIC checks that the paper is appropriate for the journal and is sufficiently original and interesting. If not, the paper may be rejected without being reviewed any further.

## 4. EIC Assigns an Associate Editor (AE)

Some journals have Associate Editors who handle the peer review. If they do, they would be assigned at this stage.

## 5. Invitation to Reviewers

The handling editor sends invitations to individuals he or she believes would be appropriate reviewers. As responses are received, further invitations are issued, if necessary, until the required number of acceptances is obtained – commonly this is 2, but there is some variation between journals.

## 6. Response to Invitations

Potential reviewers consider the invitation against their own expertise, conflicts of interest and availability. They then accept or decline. If possible, when declining, they might also suggest alternative reviewers.

## 7. Review is Conducted

The reviewer sets time aside to read the paper several times. The first read is used to form an initial impression of the work. If major problems are found at this stage, the reviewer may feel comfortable rejecting the paper without further work. Otherwise they will read the paper several more times, taking notes so as to build a detailed point-by-point review. The review is then submitted to the journal, with a recommendation to accept or reject it – or else with a request for revision (usually flagged as either major or minor) before it is reconsidered.

## 8. Journal Evaluates the Reviews

The handling editor considers all the returned reviews before making an overall decision. If the reviews differ widely, the editor may invite an additional reviewer so as to get an extra opinion before making a decision.

## 9. The Decision is Communicated

The editor sends a decision email to the author including any relevant reviewer comments. Whether the comments are anonymous or not will depend on the type of peer review that the journal operates.

## 10. Next Steps

If *accepted*, the paper is sent to production. If the article is *rejected* or sent back for either major or minor *revision*, the handling editor should include constructive comments from the reviewers to help the author improve the article. At this point, reviewers should also be sent an email or letter letting them know the outcome of their review. If the paper was sent back for *revision*, the reviewers should expect to receive a new version, unless they have opted out of further participation. However, where only minor changes were requested this follow-up review might be done by the handling editor.

## Types of peer review

The three most common types of peer review are single-anonymized, double-anonymized, and open peer review. Over time, new models have developed such as transparent, collaborative, and post publication peer review, which are key variations from the standard approach. Peer review is constantly evolving, with new models and changes to traditional models being experimented with regularly.

|                          |                                                                   |
|--------------------------|-------------------------------------------------------------------|
| <b>Single anonymized</b> | Author doesn't know the identity of the reviewer.                 |
| <b>Double anonymized</b> | Reviewer doesn't know the identity of the author, and vice-versa. |

|                                |                                                                                                                                                            |
|--------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Open Peer review</b>        | The identity of the author and the reviewer is known by all participants, during or after the review process.                                              |
| <b>Transparent Peer review</b> | Review report is posted with the published article. Reviewer can choose if they want to share their identity.                                              |
| <b>Collaborative</b>           | Two or more reviewers work together to submit a unified report.<br><br>OR<br><br>Author revises manuscript under the supervision of one or more reviewers. |
| <b>Post publication</b>        | Review solicited or unsolicited, of a published paper. Does not exclude other forms of peer review.                                                        |

## 5.2

### **Research metrics-Journal level, Article level and Author level**

The word metrics means “measurement.” In the academic publishing industry, we measure the impact of published research based on various metrics. For example, we look at how many times a paper is cited by subject or author and how many times a specific article in a journal is cited to assess the importance of the journal and its impact on the field of study. In this article, we look at three metrics: journal-level, article-level, and author-level. Each of these has a specific impact. It is helpful to familiarize yourself with each to help you reach your research goals.

#### **Journal-Level Metrics**

Journal-level metrics are used to determine **the impact a journal** has on the scientific community.

- **Impact Factor:** This metric has been used most frequently. It is the **average number of citations of an article, a proceeding, or a review published in a journal in the last two years**. It is published in Journal Citation Reports (JCR). This metric is published on an annual basis and can be often found on the websites of the journals. Similarly, 5-year IF is also measured to assess the journal metrics.

There are additional measures that consider citation-level metrics as follows:

- **Eigenfactor:** Eigenfactor gives higher weightage citations from influential journals and does not consider self-citations. It is based on the **average citations in a JCR**

**year to papers published in the last 5 years.** It is also published in JCR and sources its data from Web of Science.

- **SCImago Journal Rank (SJR):** Similar to Eigenfactor, SJR gives greater weightage to citations from influential journals. It is based **on the average number of weighted citations in a year to that published in the last 3 years.** It uses information from Scopus to produce country and journal-specific indicators. SJR is published in SCImago journal and country rank reports.
- **Source Normalized Impact per Paper (SNIP):** It is based on **the weighted citations in a year to papers published in the last three years.** Published in CWTS Journal Indicators, the data for this indicator is sourced from Scopus. It also corrects the differences in citation practices in different disciplines, making it easier to compare this metric across various fields.
- **CiteScore:** A new metric by Scopus, it includes eight complementary indicators such as CiteScore Tracker, CiteScore Percentile, Citation Count, and more.
- **h5 Index:** This metric counts the **number of articles (h) published in the past five years that have a minimum of h citations.** It is available through Google Scholar.
- **Immediacy Index:** It is the average number of article citations in the first of publication. It helps to assess how quickly these papers are cited. It is published annually in JCR. It also sources its data from Web of Science.

## Article-Level Metrics (ALMs)

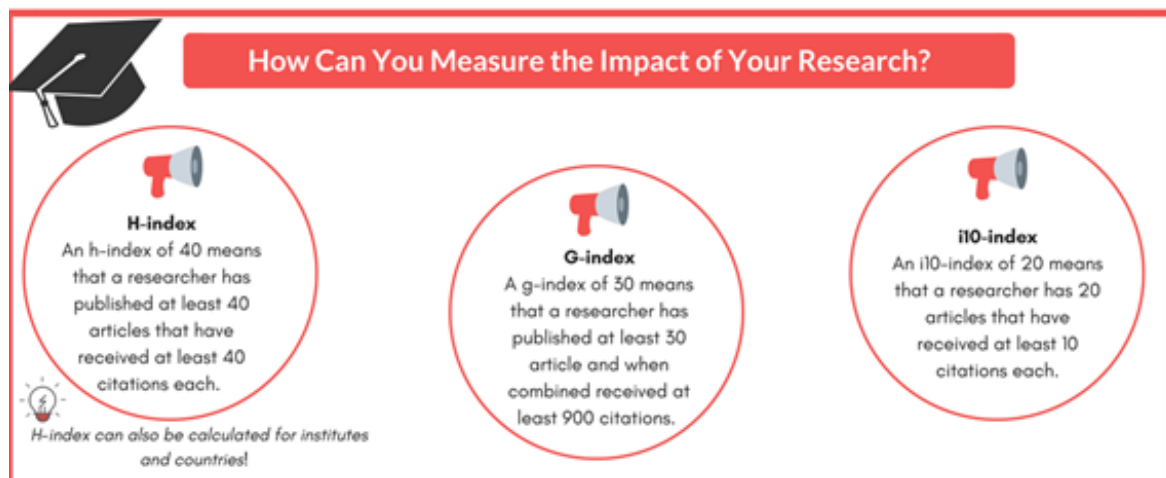
Article-level metrics (ALMs) are used to quantify the impact of published articles-**how published papers are being discussed and shared.** The ALM process uses various sources of information. Some are listed here.

- **Altmetrics:** Altmetrics is an alternative to the traditional citation metrics. They can include (but are not limited to) peer reviews, citations on Wikipedia and in public policy documents, discussions on research blogs, media coverage, bookmarks on reference managers like Mendeley, and mentions on social networks such as Twitter. Therefore, the data for calculating Altmetrics is sourced from the web and can give an insight into the research output activity across various platforms as soon as the article is published.
- **Article-level metrics:** *PLOS* article-level metric allows to measure the impact of your research before it starts receiving citations. **It measures both academic and social metrics to display the level of engagement from both scientific community and public.** It is usually displayed along with individual journal article. In addition, Scopus, the largest abstract and citation database comprising of more than 21,000 journals, has incorporated ALMs into its indices and has partnered with altmetrics to provide even more datasets. Nature Publishing Group (NPG) has also incorporated ALMs into its metric system of evaluating the impact of an article. Similarly, BioMed Central has also incorporated altmetrics into their database.

## Author-Level Metrics

Author-level metrics provide an assessment of the **impact that an author makes on the scientific community or field of the study.**

- **h-index:** It quantifies an individual's scientific research output. It **indicates the number of articles (h) that have been cited least (h) number of times.** This can be applied to any type of datasets apart from research articles.
- **g-index:** For calculating g-index, **articles are ranked in a decreasing order of the number of citations.** It indicates the largest number such that the top g articles received at least  $g^2$  citations.



## **PLAGIARISM CITATION AND ACKNOWLEDGEMENT**

Plagiarism is the use of the intellectual property of others without proper permission or credit. It takes many different forms. Plagiarism is really a type of theft. Drawing the line between legitimate and illegitimate use of the intellectual property of others is often difficult, and the method of line-drawing is useful in helping us discriminate between the two. Some cases are undeniable examples of plagiarism, such as when the extended passages involving the exact words or the data of another are used without proper permission or attribution. On the other side of the spectrum, the quotation of short statements by others with proper attribution is clearly permissible.

A citation is a textual reference (in the body of your assignment) to the source of the material you wish to use. The list of references contains complete information with respect to the source (so that it could be found by another person) in the form of an alphabetically ascending– on author(s) name(s) –and chronologically ascending– on year of publication – (where necessary) ordered list of all such sources cited in your assignment. The purpose of a citation is to acknowledge the work of others that you use in your assignments. It does this by providing a unique link to a specific entry in your list of references which is a component of the back-matter of an essay, report, thesis or any other kind of assignment. **Failure to acknowledge your sources is considered to be a serious academic offence which is called plagiarism**

Sources of information and the ideas of others that you use in your assignments, research and class activities may include books, journal articles, newspaper or magazine articles, company documents and web-sites, government or institutional reports, patents, and personal communication, among others. Information and ideas from these sources are found in a variety of forms, including words, numbers and statistics, diagrams, tables, logos, music, video, plans, computer source code, and so on

In academic work, we acknowledge sources in written work by referencing the source in two areas:

1. in the body of the text, through in-text Citations, footnotes (placed at the bottom of a page), or endnotes (placed at the end of a chapter or report, but before the reference list); and
2. a reference list placed at the end of an assignment or thesis, but before appendices

These are the five most common types of plagiarism:

- **Global plagiarism** means passing off an entire text by someone else as your own work.
- **Verbatim plagiarism** means directly copying someone else's words.
- **Paraphrasing plagiarism** means rephrasing someone else's ideas to present them as your own.
- **Patchwork plagiarism** means stitching together parts of different sources to create your text.
- **Self-plagiarism** means recycling your own past work.

## **PROFESSIONAL ETHICS**

Professional ethics is the set of standards adopted by professionals insofar as they view themselves acting as professionals. Every profession has its professional ethics: medicine, law, architecture, pharmacy, and so forth. Engineering ethics is that set of ethical standards that applies to the profession of engineering.

There are several important characteristics of professional ethics.

First, unlike common morality and personal morality, **professional ethics is usually stated in a formal code**. In fact, there are usually several such codes, promulgated by various components of the profession. Professional societies usually have codes of ethics, referred to as “code of professional responsibility,” “code of professional conduct.

Second, the professional codes of ethics of a given profession focus on the issues that are important in that profession

Third, when one is in a professional relationship, professional ethics is supposed to take precedence over personal morality—at least ordinarily. This characteristic of professional ethics has an important advantage, but it can also produce complications.

Ethics are norms or standards of behavior that guide moral choices about our behavior and our relationships with others. The goal of ethics in research is to ensure that no one is harmed or suffers adverse consequences from research activities.

As research is designed, several ethical considerations must be balanced:

- Protect the rights of the participant or subject.
- Ensure the sponsor receives ethically conducted and reported research.
- Follow ethical standards when designing research.
- Protect the safety of the researcher and team.
- Ensure the research team follows the design.

## 5.3

### **Introduction to IPR, Concepts of IPR, Types of IPR**

#### **INTRODUCTION**

Intellectual Property Rights are legal rights, which result from intellectual activity in industrial, scientific, literary & artistic fields. These rights Safeguard creators and other producers of intellectual goods & services by granting them certain time-limited rights to control their use.

#### **BASIC CONCEPT IN IPR**

- Intellectual property rights (IPR) can be defined as the rights given to people over the creation of their minds. They usually give the creator an exclusive right over the use of his/her creations for a certain period of time.
- Intellectual property (IP) refers to creations of the mind: inventions, literary and artistic works, and symbols, names, images, and designs used in commerce.
- Examples of intellectual property include an author's copyright on a book or article, a distinctive logo design representing a soft drink company and its products, unique design elements of a web site, or a patent on the process to manufacture chewing gum.

#### **OBJECTIVES OF IPR**

- Intellectual property Right (IPR) is a term used for various legal entitlements which attach to certain types of information, ideas, or other intangibles in their expressed form.
- The holder of this legal entitlement is generally entitled to exercise various exclusive rights in relation to the subject matter of the Intellectual Property.
- The term intellectual property reflects the idea that this subject matter is the product of the mind or the intellect, and that Intellectual Property rights may be protected at law in the same way as any other form of property.
- Intellectual property laws vary from jurisdiction to jurisdiction, such that the acquisition, registration or enforcement of IP rights must be pursued or obtained separately in each territory of interest.

- Intellectual property rights (IPR) can be defined as the rights given to people over the creation of their minds. They usually give the creator an exclusive right over the use of his/her creations for a certain period of time.

## **TYPES OF IPR**

- ☐ Patents
- ☐ Trademarks
- ☐ Copyrights and related rights
- ☐ Geographical indications
- ☐ Industrial designs
- ☐ Trade secrets
- ☐ Layout design for integrated circuits
- ☐ Protection of new plant variety

## **PATENTS**

A patent is an **exclusive right granted for an invention, which is a product or a process that provides a new way of doing something, or offers a new technical solution to a problem.** It provides protection for the invention to the owner of the patent. The protection is granted for a limited period, i.e. 20 years. Patent protection means that the invention cannot be commercially made, used, distributed or sold without the patent owner's consent. A patent owner has the right to decide who may - or may not - use the patented invention for the period in which the invention is protected. The patent owner may give permission to, or license, other parties to use the invention on mutually agreed terms. The owner may also sell the right to the invention to someone else, who will then become the new owner of the patent. Once a patent expires, the protection ends, and an invention enters the public domain, that is the owner no longer holds exclusive rights to the invention, which becomes available to commercial exploitation by others. All patent owners are obliged, in return for patent protection, to publicly disclose information on their invention in order to enrich the total body of technical knowledge in the world. Such an ever-increasing body of public knowledge promotes further creativity and innovation in others. In this way, patents provide not only protection for the owner but valuable information and inspiration for future generations of researchers and inventors.

### **What Can Be Patented**

Product, Process, Machine, Manufacture, Composition of Matter.

## **TRADEMARKS**

A trademark is a distinctive sign that **identifies certain goods or services as those produced or provided by a specific person or enterprise.** It may be one or a combination of words, letters, and numerals. They may consist of drawings, symbols, three- dimensional signs such as the shape and packaging of goods, audible signs such as music or vocal sounds, fragrances, or colours used as distinguishing features. It provides protection to the owner of the mark by ensuring the exclusive right to use it to identify goods or services, or to authorize another to use it in return for payment. **It helps consumers identify and purchase a product or service because its nature and quality, indicated by its unique trademark, meets their needs.** Registration of trademark is prima facie proof of its ownership giving statutory right to the

proprietor. Trademark rights may be held in perpetuity. The initial term of registration is for 10 years; thereafter it may be renewed from time to time.

### **COPYRIGHTS AND RELATED RIGHTS**

Copyright is a legal term describing **rights given to creators for their literary and artistic works**. The kinds of works covered by copyright include: literary works such as novels, poems, plays, reference works, newspapers and computer programs; databases; films, musical compositions, and choreography; artistic works such as paintings, drawings, photographs and sculpture; architecture; and advertisements, maps and technical drawings. Copyright subsists in a work by virtue of creation; hence it's not mandatory to register. However, registering a copyright provides evidence that copyright subsists in the work & creator is the owner of the work. Creators often sell the rights to their works to individuals or companies best able to market the works in return for payment. These payments are often made dependent on the actual use of the work, and are then referred to as royalties. These economic rights have a time limit, (other than photographs) is for life of author plus sixty years after creator's death.

### **GEOGRAPHICAL INDICATIONS**

**GI are signs used on goods that have a specific geographical origin and possess qualities or a reputation that are due to that place of origin?** Agricultural products typically have qualities that derive from their place of production and are influenced by specific local factors, such as climate and soil. They may also highlight specific qualities of a product, which are due to human factors that can be found in the place of origin of the products, such as specific manufacturing skills and traditions. A geographical indication points to a specific place or region of production that determines the characteristic qualities of the product that originates therein. It is important that the product derives its qualities and reputation from that place. Place of origin may be a village or town, a region or a country. It is an exclusive right given to a particular community hence the benefits of its registration are shared by the all members of the community. Recently the GIs of goods like Chanderi Sarees, Kullu Shawls, and Wet Grinders etc have been registered. Keeping in view the large diversity of traditional products spread all over the country, the registration under GI will be very important in future growth of the tribes / communities / skilled artisans associated in developing such products.

### **INDUSTRIAL DESIGNS**

Industrial designs refer to creative activity, which result in the ornamental or formal appearance of a product, and design right refers to a novel or original design that is accorded to the proprietor of a validly registered design. Industrial designs are an element of intellectual property. Under the TRIPS Agreement, minimum standards of protection of industrial designs have been provided for. As a developing country, India has already amended its national legislation to provide for these minimal standards. The essential purpose of design law is to promote and protect the design element of industrial production. It is also intended to promote innovative activity in the field of industries. The existing legislation on industrial designs in India is contained in the New Designs Act, 2000 and this Act will serve its purpose well in the rapid changes in technology and international developments. India has also achieved a mature status in the field of industrial designs and in view of globalization of the economy, the present legislation is aligned with the changed technical and commercial scenario and made to conform to international trends in design administration. This replacement Act is also aimed to enact a more detailed classification of design to conform to the international system and to take care of the proliferation of design related activities in various fields.

### **TRADE SECRETS**

**It may be confidential business information that provides an enterprise a competitive edge may be considered a trade secret.** Usually these are manufacturing or industrial secrets and commercial secrets. These include sales methods, distribution methods, consumer profiles, and advertising strategies, lists of suppliers and clients, and manufacturing processes. Contrary

to patents, trade secrets are protected without registration. A trade secret can be protected for an unlimited period of time but a substantial element of secrecy must exist, so that, except by the use of improper means, there would be difficulty in acquiring the information. Considering the vast availability of traditional knowledge in the country the protection under this will be very crucial in reaping benefits from such type of knowledge. The Trade secret, traditional knowledge are also interlinked / associated with the geographical indications.

### **LAYOUT DESIGN FOR INTEGRATED CIRCUITS**

Semiconductor Integrated Circuit means a product having transistors and other circuitry elements, which are inseparably formed on a semiconductor material or an insulating material or inside the semiconductor material and designed to perform an electronic circuitry function. The aim of the Semiconductor Integrated Circuits Layout Design Act 2000 is to provide protection of Intellectual Property Right (IPR) in the area of Semiconductor Integrated Circuit Layout Designs and for matters connected therewith or incidental thereto. The main focus of SICLD Act is to provide for routes and mechanism for protection of IPR in Chip Layout Designs created and matters related to it. The SICLD Act empowers the registered proprietor of the layout-design an inherent right to use the layout-design, commercially exploit it and obtain relief in respect of any infringement. The initial term of registration is for 10 years; thereafter it may be renewed from time to time. Department of Information Technology Ministry of Communications and Information Technology is the administrative ministry looking after its registration and other matters.

### **PROTECTION OF NEW PLANT VARIETY**

The objective of this act is to recognize the role of farmers as cultivators and conservers and the contribution of traditional, rural and tribal communities to the country's agro biodiversity by rewarding them for their contribution and to stimulate investment for R & D for the development new plant varieties to facilitate the growth of the seed industry. The Plant Variety Protection and Farmers Rights act 2001 was enacted in India to protect the New Plant Variety; the act has come into force on 30.10.2005 through Authority. Initially 12 crop species have been identified for regt. i.e. Rice, Wheat, Maize, Sorghum, Pearl millet, Chickpea, Green gram, Black gram, Lentil, Kidney bean etc. India has opted for sui- generic system instead of patents for protecting new plant variety. Department Agriculture and Cooperation is the administrative ministry looking after its registration and other matters.

### **DURATION OF INTELLECTUAL PROPERTY RIGHTS**

- ☐ Term of every patent will be 20 years from the date of filing of patent application, irrespective of whether it is filed with provisional or complete specification. Date of patent is the date on which the application for patent is filed.
- ☐ Term of every trademark registration is 10 years from the date of making of the application which is deemed to be the date of registration.
- ☐ Copyright generally lasts for a period of sixty years.
- ☐ The registration of a geographical indication is valid for a period of 10 years.
- ☐ The duration of registration of Chip Layout Design is for a period of 10 years counted from the date of filing an application for registration or from the date of first commercial exploitation anywhere in India or in any convention country or country specified by Government of India whichever is earlier.
- ☐ The duration of protection of registered varieties is different for different crops namely 18 years for trees and vines, 15 years for other crops and extant varieties.

## **5.4**

### **Common rules of IPR practices, Types and Features of IPR Agreement**

#### **Laws related to Intellectual Property Rights (IPR)**

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- Around 1450, **Johannes Gutenberg** invented the printing press and moveable type, which enabled the creation of the world's first copyright system.
- By the 19th Century, the **Paris Convention for the Protection of Industrial property** (1883) and the **Berne Convention for the protection of Literary and Artistic Works** (1886) came into force to establish modern Intellectual Property laws.
- On 1st January 1995, the **TRIPS Agreement** came into effect which is considered to date the most complete multilateral agreement on intellectual property.

### **TRIPS Agreement**

Trade Related Aspects of Intellectual Property Right (TRIPS) is an agreement on international IP rights.

- TRIPS came into force in 1995, as part of the agreement that established the World Trade Organisation (WTO).
- TRIPS establishes minimum standards for the availability, scope, and use of seven forms of intellectual property namely, trademarks, copyrights, geographical indications, patents, industrial designs, layout designs for integrated circuits, and undisclosed information or trade secrets.
- It applies basic international trade principles regarding intellectual property to member states.
- It is applicable to all WTO members.
- TRIPS Agreement lays down the permissible exceptions and limitations for balancing the interests of intellectual property with the interests of public health and economic development.
- TRIPS is the most comprehensive international agreement on IP and it has a major role in enabling trade in creativity and knowledge, in resolving trade disputes over intellectual property, and in assuring WTO members the latitude to achieve their domestic policy objectives.
- It frames the IP system in terms of innovation, technology transfer and public welfare.
- The TRIPS Council is responsible for administering and monitoring the operation of the TRIPS Agreement.
- TRIPS was negotiated during the Uruguay Round of the General Agreement on Tariffs and Trade (GATT) in 1986–1994.
- The TRIPS Agreement is also described as a “Berne and Paris-plus” Agreement.

## **TRIPS Significance**

The TRIPS Agreement makes protection of intellectual property rights an integral part of the multilateral trading system, as embodied in the WTO. The agreement is often termed one of the three “pillars” of the WTO, the other two being trade in goods (the traditional domain of the GATT) and trade in services.

Before TRIPS, the extent of protection and enforcement of IP rights varied widely across nations and as intellectual property became more important in trade, these differences became a source of tension in international economic relations. Therefore, it was considered prudent to have new trade rules for IP rights in order to have more order and predictability, and also to settle disputes in an orderly manner.

## **Types of Intellectual Property Agreements**

Intellectual property is the resulting work or invention of someone’s creativity. For example, an individual who writes a book may seek to copyright the manuscript. A business with a popular logo or name may seek to trademark it to protect their rights. Creators seek to protect their rights through a number of ways. This is particularly important when they bring in others to work on an invention or creation. The following article will explore 5 legal intellectual property agreements that could prove useful in various scenarios.

### **1) Non-Disclosure Agreement**

A non-disclosure agreement, or an “NDA,” **is a signed agreement between parties that protects valuable and confidential information, and discourages theft of intellectual property.** It will identify the ideas, creations, and anything else the creator wants to protect, and will usually specify a timeframe for how long the non-disclosure protections are in place. In addition, the agreement will include rules against competition and solicitation. There will also be terms outlining the penalties for violating the agreement.

An example of where an NDA may be required is a “venture pitch competition”. At these events, investors listen to pitches from entrants on various ideas and creations in exchange for funding, coaching, and networking opportunities. Participants share sensitive information with those who are evaluating the business idea. It’s important to ensure protections are in place so that this exposure doesn’t lead to commercial gain by someone other than the creator.

### **2) Work For Hire Agreement**

**When you hire a contractor to perform a task, a work for hire agreement is critical to ensuring there is a clear understanding of who owns the completed work.** Without such an agreement, anyone who works on the project could feasibly have some rights to the creation. Having this agreement will ensure the party who have commissioned the work will retain the proper rights.

For example, an entrepreneur who has an idea for a smartphone app may use a work for hire agreement for the purpose of hiring a software developer to build the app, while they retain ownership of the creation.

### 3) Confidentiality Agreement

At first glance, a confidentiality agreement and a non-disclosure agreement may seem like the same thing, but there are important differences. Both are used to protect confidential information, while an **NDA is usually used when the requirement is for a unilateral party not to disclose information to third parties and public forums, particularly trade secrets and inventions. A confidentiality agreement will often include more than one party and will bind the parties to keep specific information confidential.** There will often be more specific restrictions in place in a confidentiality agreement.

Employers and employees may use confidentiality agreements. Collaborators on a project may also choose to use them.

### 4) License Agreement

**People use license agreements to grant rights to another party to perform a task such as produce goods in exchange for compensation.** The party who owns the right to sell the license is the licensor. On the other hand, the party who is granted the right to the asset is the licensee. There will usually be specific rules on how the license may be used.

In May 2018, Nestle and Starbucks entered into a multibillion dollar licensing deal. As the licensee, Nestle agreed to pay \$7.15 billion in cash to Starbucks for exclusive right to sell their products (single-serve coffee, teas, bagged beans, etc.) around the world through Nestle's global distribution network. Starbucks also receives royalties from any products sold through Nestle.